BRENDAN NGEHSI NEWANFORBI
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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. **CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the CHP Dublin Area; GARY PAUL, in his official capacity as Lieutenant of the CHP Dublin Area; ERIC DUTRA, in his official capacity as Sergeant of the CHP Dublin Area; and DOES 1 through 10, inclusive,** Respondents.	**Case No. 26CV191136** **DECLARATION OF BRENDAN NGEHSI NEWANFORBI IN SUPPORT OF OPPOSITION TO DEMURRER** Date: August 28, 2026 Time: 9:00 a.m. **Assigned for All Purposes to:** Hon. Jenna M. Whitman, Dept. 25 Action Filed: May 29, 2026

I, Brendan Ngehsi Newanforbi, declare as follows:

1. I am the Petitioner in the above-captioned action. I am over the age of eighteen. I make this declaration in support of my Opposition to Respondent California Highway Patrol's Demurrer to the Petition for Writ of Mandate. I have personal knowledge of the facts stated in this declaration and, if called as a witness, I could and would testify competently to them.

2. I am a noncitizen of the United States. I hold a Class A commercial driver's license issued by the California Department of Motor Vehicles. Before the events of November 1, 2024, I was employed as a commercial truck driver.

3. On November 1, 2024, I was subjected to a traffic stop, arrest, handcuffing, and involuntary blood draw by CHP Officers Santiago Meza-Gonzalez and Jose Melano on Interstate 580 East in Livermore, Alameda County. The complete audio-video record of the encounter was captured on CHP's dashcam. I was detained and later released; no accusatory pleading was filed and no criminal charges were ever brought against me.

4. On or about November 5, 2024, CHP issued a Penal Code section 851.6 detention certificate (Dublin CHP-01991) stating that no accusatory pleading was filed and reclassifying the incident as "a detention only, not an arrest" for "insufficient grounds for making a criminal complaint." That detention certificate was among the materials I submitted with my April 9, 2026 certification request and is a document within CHP's own custody. A true and correct copy is attached to my Petition as Exhibit 7.

5. On April 9, 2026, I sent CHP a formal Request for U Nonimmigrant Status Certification. My submission included: (a) a cover letter titled "Formal Request for U Nonimmigrant Status Certification"; (b) a pre-completed Form I-918, Supplement B; (c) an eight-page "Supporting Legal Analysis and Evidentiary Summary" identifying, with dashcam timestamps, four specific documented contradictions between the CHP arrest-investigation report and CHP's own contemporaneous dashcam recording; (d) a verbatim timestamped transcript of the dashcam recording; (e) the CHP arrest-investigation report (CHP Form 202, Case No. RJ68845); (f) the section 851.6 detention certificate; (g) my sworn declaration; (h) twenty-six consecutive pay stubs; (i) DMV correspondence; and (j) the March 26, 2026 CHP assignment letter identifying Sergeant Eric Dutra as the assigned investigator on my related citizen complaint. True and correct copies of each of these documents are attached to my Petition as Exhibits 2 through 9.

6. On April 10, 2026, Lieutenant Gary Paul acknowledged receipt of the certification request by return e-mail and stated that the request was "under review" and that I would be

notified "by written correspondence."

7. On April 20, 2026—eleven days after I submitted the request—CHP issued a one-page denial letter signed by Captain G. Serrato (File No. 390.18437.17620.26-050). A true and correct copy of that denial letter is attached to my Petition as Exhibit 1. The substantive body of the letter is five sentences long. It states that CHP "conducted" a "thorough review," that the incident "does not meet the standard of qualifying criminal activity identified in Section 679.10," that it "does not meet the standards of the Immigration and Nationality Act Section 101(a)(15)(U)(iii)," and that CHP "found no substantially similar qualifying criminal activity as defined in Section 679.10(d) PC." It states no other reason. It identifies no statutory element as unsatisfied. It names no enumerated qualifying offense. It does not mention the dashcam recording. It does not mention the arrest-investigation report. It does not mention the section 851.6 detention certificate. It does not mention the presumption of helpfulness.

8. From the time I submitted my certification request through the date of denial, no CHP officer, no CHP employee, and no representative of any other law enforcement agency ever contacted me to request further information or to seek my cooperation on any investigation, prosecution, or detection effort related to the November 1, 2024 incident. No one asked me to appear for an interview, provide additional documents, identify witnesses, testify, or answer questions. I have never refused or failed to provide any information or assistance reasonably requested in connection with the underlying incident, and Respondent's denial letter contains no finding that I did.

9. I have affirmatively cooperated with every available investigative channel relating to the November 1, 2024 incident. I filed the CHP citizen complaint that initiated CHP's internal investigation (File No. 390.18437.17620). I filed a complaint with the Commission on Peace Officer Standards and Training (POST Case No. PUBLIC-26-000371). I participated in DMV proceedings arising from the incident. And I prepared and produced the verbatim timestamped

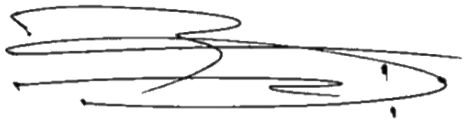
transcript of the dashcam recording that I submitted with the April 9, 2026 request. Each of these acts is documented in the exhibits attached to my Petition.

10. On June 30, 2026, I participated in a meet-and-confer telephone call with Deputy Attorney General Vanessa Ing, who informed me that Respondent intended to file a demurrer to my Petition. I told Ms. Ing that I would not amend the Petition and would oppose the demurrer, and I explained the basis for my position. Ms. Ing filed the demurrer on July 10, 2026.

11. Without a certified Form I-918, Supplement B, I have no other avenue to obtain the certification section 679.10 contemplates for victims of qualifying criminal activity.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed this 13th day of July, 2026, at Stockton, California.



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